

information through the retention of an expert witness. Specifically, Dr. Wong may have disclosed confidential information and attorney work product to McDermott law firm. Yet, the disclosure in question relates to a public response that the parties are well past. At this stage in the proceedings, moving party has failed to establish prejudice (past, present, or future) from this past disclosure as this stage of the proceedings.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2408394	DESERT HEALTHCARE DISTRICT VS ALL PERSONS INTERESTED IN THE MATTER HEREIN DESCRIBED LEASE PURCHASE TRANSACTION AND RELATED CONTRACTS AND OBLIGATIONS OF DESERT HEALTHCARE DISTRICT WITH RESPECT TO DESERT REGIONAL MEDICAL CENTER, INC.	MOTION TO STRIKE NOTICE OF LODGING

Tentative Ruling: Granted.

Moving party to provide notice pursuant to CCP 1019.5.

Eisenhower's Notice of Lodging and Supplement to the Administrative Record is stricken in its entirety.

Plaintiff Desert Healthcare District filed a Complaint for Validation on December 31, 2024 against all persons interested in the matter of a certain lease to purchase transaction and related contracts and obligations of Desert Healthcare District with respect to Desert Regional Medical Center. The Complaint seeks to validate the action taken by Plaintiff regarding the lease purchase agreement (LPA) and the actions of District's Board in approving a fairness opinion from an independent consultant and approving the LPA and ordering that a measure relating to approval of the LPA be placed on the ballot (Measure AA), which was approved by the voters by a margin of 72.34% .

Plaintiff Desert Healthcare District and Plaintiff-Intervenor Desert Regional Medical Center move the court to strike Eisenhower Medical Center's Notice of Lodging of Documents Conditionally under seal on August 5, 2026, labeled Eisenhower's supplement to the administrative record (Eisenhower_00000001 – Eisenhower_00006746, including the expert report of Paul Wong. Plaintiffs move pursuant to CCP section 128(a), 435 and 436 on the grounds that Eisenhower has no right, statutorily or otherwise, to supplement or augment the administrative record, which duty is assigned exclusively to the agency that made the decision.

In opposition, Eisenhower asserts that the evidence submitted is properly submitted and complies with CRC and Local Rules that require Eisenhower to lodge confidential materials before offering them into evidence at trial. Therefore, Eisenhower lodged its supplement to the administrative record to ensure that it preserved its right to offer this evidence at trial. Further, Eisenhower asserts that its notice of lodging is consistent with the court's August 3, 2026 order. Eisenhower also asserts that the motion to strike is an

improper vehicle to challenge admissibility of Eisenhower's expert evidence. Eisenhower asserts that courts routinely supplement the administrative record with expert evidence and doing so is appropriate here. Eisenhower asserts that courts routinely supplement the administrative record with expert evidence, and expert evidence is standard in validation actions. Further, Dr. Wong's opinions are relevant and probative evidence that the LPA is unlawful. Lastly, Eisenhower asserts that whether expert testimony is admissible at trial is premature and should be addressed in accordance with trial procedures.

In reply, Plaintiffs assert that Eisenhower does not have a right to supplement the administrative record and no rule compelled it to do so. Further, Plaintiffs assert that Eisenhower violated the court's August 3, order denying his request to supplement the administrative record and a motion to strike is the proper vehicle to challenge the improper lodging. Lastly, Plaintiffs assert that Eisenhower's arguments about the admissibility of expert testimony are meritless. Eisenhower failed to follow the appropriate procedures to introduce extra-record evidence and cannot supplement the administrative record in this fashion. Further, Plaintiffs assert that Eisenhower failed to establish the expert materials should be admitted in this validation action and Dr. Wong's opinions are irrelevant.

Augmenting of Administrative Record

CCP section 1094.6(c) assigns the duty to create the administrative record.

On August 3, 2026, this court ordered District to file an augmented record and identified what must be contained in the administrative record. Eisenhower does not have the right to file supplements to the administrative record, and this court pursuant to CCP section 436 has the right to strike the filing as not being filed in conformity with law.

Granting this motion does not in any fashion indicate the court's ruling on the admissibility of the evidence Eisenhower seeks to introduce. However, they cannot augment the administrative record.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2501784	KG MULLEN INC., A CALIFORNIA CORPORATION VS FAWAZ, AN INDIVIDUAL	MOTION TO VACATE DEFAULT BY ISABELLA FAWAZ, AN INDIVIDUAL

Tentative Ruling: Denied.

Responding party to provide notice pursuant to CCP 1019.5.

This is a matter involving the sale of real property that was encumbered with a mechanic's lien case. It is alleged that on February 22, 2022, Plaintiff KG Mullen, Inc. ("Plaintiff") entered into a written contract with Defendant Isabella and Moet Fawaz ("Fawaz") whereby Plaintiff agreed to provide specified construction-related services including labor and materials necessary for the substantial improvements to a residential property in Palm Desert, California ("Subject Property"). Over the course of the construction project, the scope of the work was modified through written and verbal change orders that